

TENTATIVE RULINGS 7-22-26
Department R17- Judge Gilbert G. Ochoa

This court follows California Rules of Court, rule 3.1308(a) (1) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings for each law & motion will be posted on the internet (<https://www.sb-court.org>) by 3:00 p.m. on the court day immediately before the hearing.

If you do not have internet access or if you experience difficulty with the posted tentative ruling, you may obtain the tentative ruling by calling the Administrative Assistant. You may appear in person at the hearing but personal appearance is not required and remote appearance by CourtCall is preferred during the Pandemic. (See www.sbcourt.org/general-information/remote-access)

If you wish to submit on the ruling, call the Court call the Court, check-in and state that you will be submitting on the Tentative, and your appearance is not necessary. But you must check in.

If both sides do not appear, the tentative will simply become the ruling.

If any party submits on the tentative, the Court will not alter the tentative and it will become the ruling.

If one party wants to argue, Court will hear argument but will not change the tentative.

If the Court does decide to modify tentative after argument, then a further hearing for oral argument will be reset for both parties to be heard at the same time by the Court.

This procedure is meant to minimize your waiting time in Court.

AGUILAR

v.

JIB CENTRAL LLC, et al.

Motion: **Motion to Compel Arbitration**

Movant: Defendant JIB Central, LLC

Respondent: Plaintiff Gloria Aguilar

DISCUSSION

A. Evidentiary Objections

In support of her Opposition, Plaintiff also files seventeen objections to statements made in the declaration of Velasco and six objections to Exhibits A-E attached to the declaration.

As to the objections to Exhibits A-E, the court overrules Plaintiff's objections in their entirety. Velasco testifies that in his position he oversee the company's operations in California,

including, but not limited to, human resource issues, and the company's employment-related policies and practices, such as the subject restaurant's application and onboarding processes. Velasco further attests that he is the custodian of records to these documents and provides information as to the mode of the preparation of the subject records. Based on the foregoing, the court finds the subject records satisfy the business records exception under Evidence Code section 1271. Velasco's declaration further provides sufficient information to establish the authenticity of the subject documents as required under Evidence Code section 1400 and 1401.

Plaintiff objects to Valasco's entire declaration and statements made in paragraphs 3-23 on the grounds that these statements are irrelevant, lack foundation and personal knowledge, speculative/conclusory or based on hearsay/records that are not authenticated. The court overrules Plaintiff's objections in their entirety.

B. Motion to Compel Arbitration

i. Relevant Legal Principles

a. State Law

The California Code of Civil Procedure sections 1280 et seq. provide a procedure for the summary determination of whether a valid agreement to arbitrate exists, and such summary procedure satisfies both state and federal law. (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th394, 413.)

Under section 1281.2 of the Code of Civil Procedure, a party to an arbitration agreement may move to compel arbitration if another party to the agreement refuses to arbitrate, and the court shall order the parties to arbitrate if it determines an agreement to arbitrate exists, unless it determines:

- (a) The right to compel arbitration has been waived by the petitioner;
- (b) Grounds exist for the revocation of the agreement; or
- (c) A party to the arbitration agreement is also a party to a pending court action or special proceeding with a third party, arising out of the same transaction or series of related transactions and there is a possibility of conflicting rulings on a common issue of law or fact.

California law favors the enforcement of valid arbitration agreements. (*Erickson, Arbuthnot, McCarthy, Kearney & Walsh, Inc. v. 100 Oak Street* (1983) 35 Cal.3d 312, 320; *In re Tobacco I* (2004) 124 Cal.App.4th 1095, 1103.) Any doubts to arbitration will be resolved against the party asserting a defense to arbitration, whether the issue is construction of contract language, waiver, delay or any like defense to arbitrability. (*Erickson, supra*, 35 Cal.3d at p. 320; *In re Tobacco I, supra*, 124 Cal.App.4th at p. 1103.)

The court must determine when a petition to compel arbitration is filed and accompanied by prima facie evidence of a written arbitration agreement whether the agreement exists, if any defense to its enforcement is raised, and whether the agreement is enforceable. (*Rosenthal, supra*, 14 Cal.4th at p. 413.) The petitioner bears the burden of proving the existence of the arbitration agreement by preponderance of the evidence. (*Id.*) If the party opposing the petition raises a defense to enforcement, then he bears the burden of producing evidence and proving by preponderance of the evidence any fact necessary to the defense. (*Id.*) The trial court's role is to resolve these factual issues. (*Id.* at p. 414.)

The party may also seek a stay of pending litigation either by itself or in conjunction with a petition to compel arbitration. (Code Civ. Proc., §1281.4; see also 9 U.S.C. §3.)

b. Federal Law

The Federal Arbitration Act (FAA), at 9 U.S.C. §1, et seq., also authorizes enforcement of arbitration clauses unless grounds exist in law or equity for the revocation of any contract. (9 U.S.C. § 2). The enforcement language of the FAA is almost identical to Code of Civil Procedure section 1281. In situations governed by the FAA, conflicting state law is preempted in either state or federal courts. (*Volt Info. Sciences, Inc. v. Board of Trustees of Leland Stanford Junior University* (1989) 489 U.S. 468, 477 [“The FAA contains no express pre-emptive provision, nor does it reflect a congressional intent to occupy the entire field of arbitration But even when Congress has not completely displaced state regulation in an area, state law may nonetheless be pre-empted to the extent that it actually conflicts with federal law”].)

To compel arbitration under the FAA, the court must find an agreement exists for arbitration between the parties and the agreement covers the dispute. (*AT&T Technologies, Inc. v. Communications Workers of America* (1986) 475 U.S. 643, 648-649.)

The enforcement of an arbitration clause is a matter of ordinary state-law contract principles. (*AT&T Mobility LLC v. Concepcion* (2011) 131 S.Ct. 1740, 1745 (*Concepcion*); *First Options v. Kaplan* (1995) 514 U.S. 938, 944.) Arbitration agreements are on equal footing with other contracts and should be enforced according to their terms. (*Concepcion, supra*, 131 S.Ct. at p. 1745.) The section in the FAA, 9 U.S.C. §2, providing arbitration agreements can be declared unenforceable on grounds of law or equity for revocation permits invalidating such agreement on contract defenses of fraud, duress, or unconscionability. (*Id.* at p. 1746.)

State rules of procedure, including those governing petitions to compel arbitration, apply in state court proceedings except where such rules would defeat the purpose of the federal law. (*Rosenthal, supra*, 14 Cal.4th at p. 409-410.)

Here, the subject agreement states, in pertinent part, as follows:

This binding arbitration shall be conducted by a retired judge or such other person as jointly selected by the parties, and the procedure governed by the Federal Arbitration Act (9 U.S.C. Sections 1-16).

JIB cites to cases such as *Tuufuli v. West Coast Dental Administrative Services, LLC* (2026) 117 Cal.App.5th 1048 for authority that the FAA applies as the subject agreement expressly states so.

Plaintiff does not address the issue of the applicable law.

As the subject agreement provides for the FAA to govern, then it governs. (*Cronus Investments, Inc. v. Concierge Services* (2005) 35 Cal.4th 376, 394; *Aviation Data, Inc. v. American Express Travel Related Services Co., Inc.* (2007) 152 Cal.App.4th 1522, 1534-35.)

ii. Contractual Relationship Between Plaintiff and JIB

In its Motion, JIB contends a valid agreement exists between Plaintiff and JIB. Specifically, JIB contends Plaintiff electronically signed the Arbitration Agreement (the Agreement) using the process set forth by Velasco in his declaration filed in support of the instant Motion. JIB contends Plaintiff used a private and password-protected account to sign the Agreement on March 8, 2021, at 10:28 p.m. PST. JIB further argues Plaintiff also completed other documents with this private and identifying information, such as her bank account number (for direct deposit), contact and emergency contact information, social security number, and USCIS permanent resident card number.

In her Opposition, Plaintiff argues, as set forth in California Uniform Electronic Transactions Act, an electronic signature is attributable to a person only if “it was the act of the person.” Here, as set forth in the declaration of the Plaintiff, Plaintiff told her manager she was unable to complete the online application and she was instructed to have someone else complete the application. Plaintiff states she asked her nephew, Medina, to help her. Medina’s declaration

states he primarily speaks Spanish and while he can understand English a little bit, he cannot speak or read English fluently. Medina further states he did not understand he was entering into the Agreement on his aunt's behalf and was not asked to enter into an arbitration agreement for her. Plaintiff argues the facts here are analogous to those in *Banister v. Marinidence Opco, LLC* (2021) 64 Cal.App.5th 541 (*Bannister*), where the Court of Appeals affirmed a denial of a motion to compel where the evidence shows the human resources manager had completed onboarding for employees who had difficulty using computers. Plaintiff contends like the facts here, the evidence in *Bannister* did not compel a finding that plaintiff signed because it did not establish she was the only person who could have accessed the onboarding portal and signed the agreement. Plaintiff argues while the facts here indicate Plaintiff had a unique username and password, the facts here show that Plaintiff did not personally use the system to knowingly agree to arbitration and Plaintiff's manager told her to use a third party to complete her application. Further, Plaintiff argues Medina was not authorized to agree to arbitration on her behalf and he was instead simply asked to assist her with submitting the online application to transfer stores. Plaintiff argues the facts here are comparable to *Harrod v. Country Oaks Partners, LLC* (2024) 15 Cal.5th 939, 959-962, 966 (*Harrod*) where the California Supreme Court held that an agent's limited authority to make health care decisions did not include authority to execute a separate arbitration agreement as the arbitration agreement concerned legal rights and forum, not the delegated health care decisions. Finally, Plaintiff argues Medina cannot be argued to have had ostensible authority as there were no actions by the Plaintiff that would have led JIB to conclude that Medina had authority to waive arbitration rights on Plaintiff's behalf.

JIB replies, citing cases such as *Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 759 for authority that Plaintiff cannot fail to read the Agreement and then seek to benefit from

the same. Further, citing *Caballero v. Premier Care Simi Valley, LLC* (2021) 69 Cal.App.5th 512, 518-19, JIB argues Plaintiff cannot avoid enforcement simply because she has “limited proficiency in the English language” and that it is incumbent upon the party who does not speak or understand English to have a contract read or explained to her. JIB further raises concerns about the credibility of Plaintiff and Medina’s declarations, specifically, that Plaintiff chose Medina to assist her when he states that, in his opinion, he cannot read English sufficiently. Further, in the declaration filed in support of JIB’s Reply, Avila states Plaintiff made no mention of being unable to complete the application electronically or that she was unable to speak or read English. Avila indicates she spoke to Plaintiff in a mix of Spanish and English. JIB further points out while Plaintiff states she does not read English sufficiently to understand legal documents, her declaration is not indicated to have required translation. JIB argues under *Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 846, JIB is not required to authenticate Plaintiff’s signature “as a preliminary matter in moving for arbitration or in the event the authenticity of the signature is not challenged.” JIB argues it satisfied its threshold burden by providing the Agreement and Plaintiff’s evidence does not challenge the Agreement’s authenticity, but instead merely argues that she did not read the Agreement, which is insufficient as a matter of law. As to whether Medina qualifies as an agent of the Plaintiff, JIB argues executing the Agreement was a condition of the employment, which Medina was supposedly tasked with seeking to secure for Plaintiff. JIB distinguishes the facts here from *Harrod*, as in that case the patient had a very clear and written “power of attorney” for “health care decisions” and the arbitration agreement clearly fell out of scope of the power of attorney.

The court grant JIB’s Motion in its entirety. Plaintiff advances only one argument in her Opposition and that is that she did not enter into the Agreement as the electronic signature was

entered by her nephew, Medina, who did not have the authority to execute the Agreement on her behalf. I disagree, the court finds JIB has met its burden of proof by a preponderance of the evidence that the parties had a valid agreement to arbitrate (Code Civ. Proc., § 1281.2) because JIB has proven that the electronic signature on the Agreement was an “act attributable” to the Plaintiff (Civ. Code, § 1633.9, subd. (a)). As set forth in the declaration of Velasco, for the subject application process, Plaintiff needed to create an account on a platform called PeopleMatter. Velasco indicates on February 27, 2021, Plaintiff submitted an application for employment with JIB. As pointed out by JIB in its Reply, however, the Agreement followed a verbal offer for employment and an email with the subject offer. Velasco further states that after receiving the email offer, Plaintiff needed to create a JIB-specific People Matter profile with a unique username and password and that this was used to electronically sign her onboarding documents, including the Agreement. Avila states in her declaration that on March 8, 2021, Plaintiff verbally informed her that she was accepting her offer of employment and she would submit the requested documents.

The Court agrees with JIB that Plaintiff fails to dispute that she did not electronically sign the Agreement. Specifically, Plaintiff states in her declaration only that she had Medina, “fill out the online application for me.” Medina confirms this in his declaration as he indicates he understood he was helping his aunt “complete an online application.” Both declarations are silent as to the fact that there had to have been two PeopleMatter accounts opened at two separate times. Velasco’s declaration indicates Plaintiff’s application was submitted on February 27, 2021, but the employment offer was not accepted until March 8, 2021, a week later. As such, the evidence proffered by the Plaintiff fails to dispute that she did not electronically sign the Agreement. Instead, Plaintiff’s evidence only supports her contention that she did not

understand the Agreement due to her limited knowledge of English. Generally, however, a party may not avoid enforcement of an arbitration provision because the party has limited proficiency in the English language. (*Ramos v. Westlake Services LLC* (2015) 242 Cal.App.4th 674, 687.)

To the extent that Plaintiff's and Medina's declarations could be construed as a dispute of her electronic signature on the Agreement, the court finds them lacking in credibility. Specifically, Plaintiff's statement that she does not speak English is refuted by Avila, who indicates she spoke to Plaintiff in a mix of Spanish and English. Further, Plaintiff's and Medina's attestation that they do not read English fluently or sufficiently to understand legal documents is in direct opposition to the fact that they signed the subject declarations in English, with no translation to Spanish indicated to have been needed. Accordingly, the court finds JIB has met its burden of proof that the parties had a valid agreement to arbitrate and grant JIB's Moton in its entirety.

III.

RULING

The court rules as follows:

- (1) Overrule Plaintiff's Evidentiary Objections in their entirety.
- (2) Grant JIB's motion to compel Plaintiff's individual claims to arbitration, stay litigation of Plaintiff's representative PAGA claim and dismiss Plaintiff's class action claims without prejudice.

Movant to give notice.

Dated-

Judge